

# Legal and Ethical Challenges of in E-Governance in Bangladesh

E-governance in Bangladesh has expanded rapidly through initiatives like digital service delivery, online taxation, and national ID systems. While this transformation improves efficiency and access, it also raises several **legal and ethical issues** that need careful attention.

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## 1. Legal Issues in E-Governance

### a. Data Protection and Privacy

Bangladesh has historically relied on the Information and Communication Technology Act 2006 and more recently the Digital Security Act 2018. However, these laws:

- Do not provide a comprehensive data protection framework
- Lack clear rules on consent, data storage, and third-party sharing

This creates risks of misuse of citizens' personal data (e.g., NID, health, tax records).

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### b. Cybersecurity and Cybercrime

With increasing digitization, cyber threats such as hacking, identity theft, and data breaches are rising. Although laws exist:

- Enforcement capacity is limited
- Institutional coordination is weak

Government databases are attractive targets, raising national security concerns.

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### c. Legal Recognition of Digital Transactions

E-governance depends on digital signatures and online transactions. While Bangladesh recognizes e-signatures:

- There are still gaps in implementation
  - Limited awareness among citizens and officials reduces effectiveness
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#### **d. Freedom of Expression vs Regulation**

The Digital Security Act 2018 has been criticized for:

- Vague provisions
- Potential misuse to restrict online speech

This creates tension between state security and citizens' fundamental rights.

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#### **e. Jurisdictional Challenges**

Digital platforms often operate across borders:

- Difficulty in prosecuting foreign-based cybercrime
  - Lack of international legal cooperation frameworks
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## **2. Ethical Issues in E-Governance**

#### **a. Privacy and Surveillance**

Mass data collection (e.g., biometric databases) raises ethical concerns:

- Potential government surveillance
- Lack of transparency in data use

Citizens may not fully understand how their data is being used.

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#### **b. Digital Divide**

E-governance may unintentionally exclude:

- Rural populations
- Elderly and digitally illiterate citizens

This creates inequality in access to public services, undermining fairness.

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### **c. Transparency and Accountability**

While e-governance aims to improve transparency:

- Lack of open data policies can limit accountability
  - Algorithms used in decision-making may be opaque
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### **d. Consent and Awareness**

Many users:

- Provide personal data without informed consent
- Are unaware of risks and rights

This raises ethical questions about autonomy and fairness.

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### **e. Risk of Corruption in Digital Form**

E-governance reduces traditional corruption but may introduce:

- Algorithmic bias
  - Manipulation of digital records
  - Insider misuse of systems
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## **3. Emerging Concerns**

### **a. Artificial Intelligence and Automation**

Use of AI in governance (e.g., predictive systems):

- May lead to biased decisions
- Raises ethical concerns about fairness and accountability

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## b. Big Data Governance

Large-scale data use without proper regulation may lead to:

- Commercial exploitation
- Political misuse

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# 4. Way Forward (Policy Suggestions)

To address these challenges, Bangladesh should:

- Enact a **comprehensive data protection law** aligned with global standards
- Strengthen cybersecurity infrastructure and skilled manpower
- Reform controversial provisions of digital laws to protect civil liberties
- Promote digital literacy and inclusion
- Ensure transparency in algorithmic governance
- Establish independent oversight bodies

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# Conclusion

E-governance in Bangladesh offers immense potential for improving public service delivery and administrative efficiency. However, without robust legal safeguards and ethical frameworks, it risks undermining privacy, equity, and trust. A balanced approach—combining technological advancement with rights-based governance—is essential for sustainable digital transformation.